

BILL LOCKYER State of California
Attorney General DEPARTMENT OF JUSTICE

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June 17, 2014

Jane Doe, Compliance Paralegal
YAHOO!
701 First Avenue
Sunnyvale, CA 94089

RE: Request for subscriber information: roe1234@yahoo.com
Internal Reference Number: 1234

Dear Ms. Doe:

I have been forwarded a copy of a Yahoo! invoice for payment for the production of records under the Electronic Communications Privacy Act (ECPA). Our office is advising California law enforcement agencies not to tender payment for the production of records relating to a criminal investigation.

We recognize that under 18 U.S.C., section 2706, that the ECPA requires the governmental entity obtaining the contents of communications, records, or other information to pay the person or entity assembling or providing such information a fee for reimbursement for such costs as are reasonably necessary and which were directly incurred in searching for, assembling, reproducing or otherwise providing such information. The statute specifies that the amount of the fee is to be mutually agreed upon, and if no agreement is reached, it is to be determined by the court that issued the order for production or the court where the criminal prosecution would be brought.

The California State Legislature, pursuant to California Evidence Code section 1563, has limited the recovery of these costs to only civil actions. The above-referenced matter is a state criminal action. In that the ECPA specifies that a California state court will determine the costs in

this matter, we anticipate that California Evidence Code section 1563 will bar the imposition of any costs. Additionally, we believe that your listed costs of \$100 for the processing of records does not reflect the costs that were reasonably necessary and which were directly incurred in searching for, assembling, reproducing or otherwise providing the information. Of interest, your company is the only Internet Service Provider that is billing California law enforcement for the production of records in criminal investigations.

If you disagree with our position please contact me so that we may set a hearing to determine the fee in the state court that issued the order for the production of records. I may be reached a (916) 555-1234.

Sincerely,

Robert Morgester
Deputy Attorney General

For BILL LOCKYER
Attorney General